

Amendment No. 1 to HB0130

Todd
Signature of Sponsor

AMEND Senate Bill No. 484

House Bill No. 130*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 53-1-118(b)(3), is amended by deleting the language "subdivision (b)(4)" and substituting the language "subdivision (b)(5)".

SECTION 2. Tennessee Code Annotated, Section 53-1-118(b)(4), is amended by deleting the language "subdivision (b)(3)" wherever it appears and substituting the language "subdivision (b)(4)".

SECTION 3. Tennessee Code Annotated, Section 53-1-118(b)(4)(B), is amended by deleting the language "subdivisions (b)(3)(A)-(C)" and substituting the language "subdivisions (b)(4)(A)-(C)".

SECTION 4. Tennessee Code Annotated, Section 53-1-118(b), is amended by adding the following as a new subdivision (3) and renumbering existing subdivision (3) and subsequent subdivisions accordingly:

(3) Time/temperature control for safety food homemade food items must:

(A) Not include unpasteurized milk or foods that are, or that contain, alcoholic beverages, fish, shellfish products, meat, meat by-products, or meat food products;

(B) Be sold only to the extent permissible by federal law, including, but not limited to, poultry, poultry byproducts, or poultry food products, which are permitted if:

(i) The home-based food business operates as a poultry producer in compliance with the 1,000-poultry exemption under 9 CFR 381.10(c)

and uses only exempted poultry products, byproducts, or food products;

or

(ii) The home-based food business complies with 9 CFR 381.10(d), uses only federally or state-inspected and passed poultry products bearing the official mark of inspection, and meets all other applicable exemption requirements under 9 CFR 381.10(d); and

(C) Be sold either by:

(i) The producer to the consumer, in person; or

(ii) An agent of the producer, in person, such as a farm stand located on the property where the food was prepared.

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it.